

- (d) More than one of the above
- (e) None of the above

68th B.P.S.C. (Pre) 2022

Ans. (e)

The correct answer is Option(e)- None of the above. The Central Government notified rules for Consumer Protection (Jurisdiction of the District Commission, the State Commission, and the National Commission) Rules, 2021.

According to this rule, District Commissions shall have jurisdiction to entertain complaints where the value of the goods or services paid as consideration does not exceed 50 lakh rupees. Hence, option (a) is correct.

While discussing State Commissions, it shall have jurisdiction to entertain complaints where the value of the goods or services paid as consideration exceeds 50 lakh rupees but does not exceed 2 crore rupees.

As far as the National Commission is concerned, it shall have jurisdiction to entertain complaints where the value of the goods or services paid as consideration exceeds 2 crore rupees. Notably, the Consumer Protection Act, of 1986 provides a 3-tier structure the National and State Commissions and District Forums to speed up resolution of consumer disputes. According to the provisions of Section 28(l), the State Government may, if it deems fit, establish more than one district commission in a district. Hence, option (b) is correct. Each District Forum is headed by a person who is or has been or is eligible to be appointed as a District Judge and each State Commission is led by a person who is or has been a Judge of the High Court. It is important to mention here that two other members, in the District forum one of whom shall be a woman. Hence, option (c) is also correct. So, None of the given options is incorrect. Hence, option (e) is the accurate answer.

91. With reference to the Consumer Disputes Redressal at the district level in India, which one of the following statements is not correct?

- (a) State Government can establish more than one District Forum in a district if it deems fit.
- (b) One of the members of the District Forum shall be a woman.
- (c) The District Forum entertains the complaints where the value of goods or services does not exceed rupees fifty lakhs.

- (d) A complaint in relation to any goods sold or any service provided may be filed with a District Forum by the State Government as a representative of the interest of the consumers in general.

I.A.S. (Pre) 2010

Ans. (c)

Under the Consumer Protection Act of 1986, the State Government shall establish a District Forum in each district of the State, and the District Forum shall have jurisdiction to entertain complaints where the value of the goods or services and the compensation, if any, claimed does not exceed rupees twenty lakhs, whereas in the case of State Commission claim exceeds rupees twenty lakhs but does not exceed rupees one crore.

A State Government can file a case in a District Forum for the sake of consumer interest.

The Supreme Court

*An Integrated Judicial system has been established under the Indian Constitution in which the Supreme Court is at the top.

*Below the Supreme Court there are various High Courts.

*This single system of Judiciary has been adopted from the

Government of India Act 1935. *The Supreme Court of India was inaugurated on 28th January 1950. ***Articles 124 to 147** in Part V of Indian Constitution deals with the Supreme Court.

*The Supreme Court of India consists of the Chief Justice of India and 33 other judges. *Earlier there were 30 Judges and a Chief Justice. Supreme Court (Number of Judges) Amendment Act, 2019 increased the number of Judges including Chief Justice from 31 to 34. The President of India appoints the judges of the Supreme Court. *The President appoints a Chief Justice after consultation with the other judges of the Supreme Court of India and the judges of the high courts. *The person

to be appointed as a Judge of the Supreme Court must be a citizen of India and he should be, for at least 5 years, a Judge of a High Court or two or more such courts in succession; or he has been for at least ten years an advocate of a High Court or of two or more such courts in succession; or he must be a distinguished jurist in the opinion of President. *No minimum age is prescribed for the appointment of judges of the Supreme Court. *Parliament has the power to increase the number of Judges in Supreme Court. *A person appointed as the Judge of the Supreme Court has to make and subscribe

an oath or affirmation before the President. *Judges can give their resignation in writing to the President. *Judges of the Supreme Court can be removed by the President after the recommendation of the Parliament.

*Recommendation of Parliament for removal of Judges must be passed by a special majority in each house of the Parliament. *The recommendation of Parliament is presented to the President in the same session. *The grounds on which removal of judges takes place have **proven misbehaviour** and **incapacity**. *These removal can be declared unconstitutional and illegal in the state of being extra ordinate. *The Judges of the Supreme Court retire at the age of **65 years**. *Salary and other allowances of the Supreme Court Judges are determined by Parliament. *Under **article 127**, the Chief Justice of India can appoint a judge of a High Court as Ad hoc Judge of the Supreme Court for a temporary period to complete the quorum of the Judges. *The bench hearing a case related to the interpretation of the Constitution should have at least 5 judges. *According to **article 129**, the **Supreme Court is a Court of Record**. *It has the power to punish for its contempt. *Court of Record means court whose proceedings are kept as record and are available as an evidence of fact. **Article 131** deals with the original jurisdiction of the Supreme Court. Disputes between the Government of India and any of the States of the Union, the government of India and any State or States on one side and any other State or States on the other side or between two or more States comes under the original jurisdiction of the Supreme Court. ***Articles 132** to **136** deal with the **Appellate jurisdiction** of the Supreme Court. *The Supreme Court under its extraordinary powers conferred by **Article 136** can interfere to **quash the decision of a quasi - Judicial tribunal** when the tribunal has either exceeded its jurisdiction or has approached the question referred to in a manner likely to result in injustice. ***Article 137** provides that the Supreme Court has the power to review any judgement pronounced or order made by itself. *The concept of **Judicial review** is based on Procedure established by law. *The last authority to interpret the Constitution is the Supreme Court. It is called as the **Guardian of the Indian Constitution**. *According to **article 143**, the President may seek the opinion of the Supreme Court on any question of law or fact of the public importance on which he thinks it is expedient to obtain such an opinion or an any dispute arising out of the pre-

constitutional treaty, agreement, covenant, engagement or other similar instruments. In first case the Supreme Court may tender or refuse to answer but in second case Supreme Court is bound to tender its opinion. *The Supreme Court can send any case to any court of the country. *The source of the **Doctrine of Basic structure** of the Indian Constitution is **Judicial interpretation**. ***Article 141** of Indian Constitution stipulates that the decision of the Supreme Court would be binding upon other courts of India. *In the Keshvananda Bharati Case (1973), the Supreme Court propounded the Doctrine of the Basic Structure of the Indian Constitution.

1. When was the Supreme Court inaugurated in India?

- (a) 27 January, 1950
- (b) 28 January, 1950
- (c) 29 January, 1950
- (d) 30 January, 1950

M.P.P.C.S. (Pre) 2013

Ans. (b)

The Supreme Court in India was inaugurated on 28 January, 1950.

2. Supreme Court in India was established-

- (a) By an Act of Parliament in 1950
- (b) Under Indian Independence Act, 1947
- (c) Under Indian Government Act, 1953
- (d) By the Indian Constitution

42nd B.P.S.C. (Pre) 1997

Ans. (d)

The Supreme Court of India was inaugurated on 28th January, 1950. It succeeded the Federal court of India established under the Government of India Act, 1935.

3. The Provisions relating to appointment of Supreme Court and High Court Judges in the Indian Constitution were incorporated on the basis of published recommendations given by ____ Committee (1945).

- (a) Harendra Kumar
- (b) Sen (Usha Nath Sen)
- (c) Varadachari (S. Varadachari)
- (d) Sapru (Sir Tej Bahadur Sapru)

M.P.P.C.S. (Pre) 2025

Ans. (d)

The Sapru Committee Report of 1945 made recommendations for the appointment of Supreme Court and High Court judges. The report was prepared by a committee led by Sir Tej Bahadur Sapru. The Sapru Committee was appointed by the Non-Party Conference in November 1944. The committee was formed to address issues related to minorities in India. The committee's report contained 21 recommendations on constitutional questions. It is important to mention here that Constituent Assembly appointed an Ad hoc committee on Supreme Court for the recommendations related to Judiciary. The committee comprised S. Varadachariar, a former Judge of the Federal Court, along with Alladi Krishnaswami Ayyar, B.L. Mitter, and K.M. Munshi, all of whom were eminent advocates. It also included B.N. Rau, the Constitutional Adviser and a former high-ranking judicial officer. In its report submitted on May 21, 1947, the committee not only addressed the jurisdiction of the Supreme Court but also proposed two alternative methods for the appointment of its judges.

4. The power to increase the number of Judges in the Supreme Court of India is vested in –

- (a) The President of India
- (b) The Parliament
- (c) The Chief Justice of India
- (d) The Law Commission

I.A.S. (Pre) 2014

44th B.P.S.C. (Pre) 2000

Ans. (b)

Article 124 of the Constitution provides for the formation of the Supreme Court. The power to increase the number of Judges in the Supreme Court of India is vested in the Parliament.

5. The current sanctioned strength of Judges of Supreme Court of India is –

- (a) 20
- (b) 25
- (c) 30
- (d) 31

38th B.P.S.C. (Pre) 1992

U.P.P.C.S. (Mains) 2015

Ans. (*)

The Supreme Court of India was established according to Part V, Chapter IV, Article 124 of the Constitution of India and is the highest judicial forum and the final Court of Appeal. Establishment of the Supreme Court of India, its composition and jurisdiction have been laid down in Articles 124 to 147 of the Indian Constitution. Initially, during the 1950s the Supreme Court consisted of a Chief Justice and seven

Judges. In 1956, the number rose to eleven, rising to fourteen, eighteen, twenty-six and thirty-one including the Chief Justice in 1960, 1978, 1986 and 2009 respectively. It is noteworthy that the Supreme Court (Number of Judges) Amendment Act, 2019 has increased the number of judges in the Supreme Court from 31 (30+1) to 34 (33+1). Currently there are a total of 34 judges in the Supreme Court including the Chief Justice.

6. The Supreme Court consists of a Chief Justice and

- (a) Seven Judges
- (b) Nine Judges
- (c) Eleven Judges
- (d) Twenty-five Judges

Uttarakhand U.D.A./L.D.A. (Pre) 2007

Ans. (*)

The Supreme Court of India has been established under Article 124 of the Constitution of India. The number of Judges is also mentioned in Article 124. The original constitution of 1950 envisaged a Supreme Court with a Chief Justice and 7 Puisne Judges-leaving it to parliament to increase this number. In the early years, all the Judges of the Supreme Court sat together to hear the cases presented before them. As the work of the court increased and arrears of cases began to accumulate, parliament increased the number of Judges from 8 in 1950 to 11 in 1956, 14 in 1960, 18 in 1978 and 26 (including Chief Justice) in 1986. By the Supreme Court (Number of Judges) Amendment Act, 2009 number of Judges increased from 26 to 31 (including Chief Justice). It is noteworthy that the number of Judges has been increased from 31 to 34 (including Chief Justice) by The Supreme Court (Number of Judges) Amendment Act, 2019.

7. According to a decision taken by the Cabinet in February 2008, the Government would increase the strength of Judges in the Supreme Court. Under this decision, apart from the Chief Justice of India the Supreme Court would then have-

- (a) 32 Judges
- (b) 30 Judges
- (c) 38 Judges
- (d) 26 Judges

U.P. Lower Sub. (Pre) 2004

Ans. (*)

See the explanation of the above question.

8. To become a Judge of Supreme Court, a person must be an advocate in High Court for at least how many years?

- (a) 20
- (b) 10
- (c) 8
- (d) 25

M.P.P.C.S. (Pre) 2002

Ans. (b)

Article 124 of the Indian Constitution deals with the establishment and Constitution of Supreme Court. Article 124 (3) of the Constitution prescribes that for appointment as a Judge of the Supreme Court a person must be

- (a) a citizen of India, and
- (b) has been a Judge of any High Court for at least 5 years, or
- (c) has been an advocate in a High Court for 10 years or is in the opinion of the President, a distinguished Jurist.

9. Who appoints the Judges of the Supreme Court of India ?

- (a) The Prime Minister
- (b) The President
- (c) The Chief Justice of India
- (d) The Ombudsman
- (e) None of the above / more than one of the above

63rd B. P.S.C. (Pre) 2017

Ans. (b)

See the explanation of the above question.

10. The resignation letter by a Judge of Supreme Court is addressed to :

- (a) The President
- (b) The Prime Minister
- (c) The Chief Justice of India
- (d) The senior most Judge of Supreme Court

U.P.P.C.S. (Pre.) 2023

U.P.P.C.S. (Pre) 2014

Ans. (a)

Article 124 of the Indian Constitution

(1) There shall be a Supreme Court of India consisting of a Chief Justice of India and until Parliament by law prescribes a larger number, of not more than thirty-three (Originally, it was seven) other Judges.

(2) Every Judge of the Supreme Court shall be appointed by the President by warrant under his hand and seal after consultation with such of the Judges of the Supreme Court and of the High Courts in the States as the President may deem necessary for that purpose and shall hold office until he attains the age of sixty-five years.

Provided that in the case of appointment of a judge other than the Chief Justice, the Chief Justice of India shall always be consulted :

Provided further that -

- (a) A Judge may, by writing under his hand addressed to the President, resign his office.
- (b) A Judge may be removed from his office in the manner provided in clause (4).

So, option (a) is the correct answer.

11. A Judge of the Supreme Court may resign his office by writing to ?

- (a) The President
- (b) The Prime Minister
- (c) The Law Minister
- (d) The Attorney General of India
- (e) None of the above/More than one of the above

64th B.P.C.S. (Pre) 2018

Ans. (a)

See the explanation of the above question.

12. How can a Judge of the Supreme Court be removed?

- (a) By the will of the Chief Justice
- (b) By the President
- (c) By the President on the recommendation of the Chief Justice of the Supreme Court
- (d) By the President on the recommendation of the Parliament

M.P.P.C.S. (Pre) 1993

Ans. (d)

According to Article 124(4), a Judge of the Supreme Court cannot be removed from his office except by an order of the President passed after an address in each House of Parliament supported by a majority of the total membership of that House and by a majority of not less than two-thirds of members present and voting, and presented to the President in the same session for such removal on the ground of proved misbehaviour or incapacity. A person who has been a Judge of the Supreme Court is debarred from practising in any court of Law or before any other authority in India.

Note : Though it is an impeachment-like process but the Impeachment word is used only to remove the President. The term impeachment is not used to remove a judge of a Supreme Court or a High Court. The word 'Remove' has been used in the Constitution to remove them.

13. Consider the following statements :

1. The motion to impeach a Judge of the Supreme court of India cannot be rejected by the Speaker of the Lok Sabha as per the Judges (inquiry) Act, 1968.
2. The Constitution of India defines and gives details of what constitutes 'incapacity and proved misbehaviour' of the Judges of the Supreme Court of India.
3. The details of the process of impeachment of the Judges of the Supreme Court of India are given in the Judges (Inquiry) Act, 1968.
4. If the motion for the impeachment of a judge is taken up for voting, the law requires the motion to be backed by each House of the Parliament and supported by a majority of total membership of that House and by not less than two-thirds of total members of that House present and voting.

Which of the statements given above is/are correct?

- (a) 1 and 2 (b) 3 only
(c) 3 and 4 only (d) 1, 3 and 4

I.A.S. (Pre) 2019

Ans. (c)

The motion to remove a judge of the Supreme Court of India can be rejected by the speaker of the Lok Sabha as per the Judges (Inquiry) Act, 1968.

The details of the process of removal of the judges of the Supreme Court of India are given in the Judges (Inquiry) Act, 1968.

Article 124(4) a judge of the Supreme Court shall not be removed from his office except by an order of the president passed after an address by each house of parliament supported by a majority of the total membership of that house and by a majority of not less than two-thirds of the members of that house present and voting has been presented to the president in the same session for such removal on the ground of proved misbehaviour or incapacity. Thus, the Constitution provides the ground for the removal of Judges of the Supreme Court but it does not define proved misbehaviour or incapacity.

14. A Judge of the Supreme Court can be removed by the President of India after—

- (a) An enquiry by C.B.I.
(b) An enquiry by Chief Justice of India
(c) A report by the Bar Council of India
(d) An impeachment by the Parliament

Chhattisgarh P.C.S. (Pre) 2003

Ans. (d)

See the explanation of the above question.

15. The age of retirement in the Supreme Court is—

- (a) 62 Years (b) 63 Years
(c) 64 Years (d) 65 Years

U.P.P.C.S. (Pre) 1990

Ans. (d)

The retirement age of the Judges of the Supreme Court is 65 years while the age of the retirement of the Judges of the High Courts is 62 years.

16. What is the retirement age of the Judges of the Supreme Court ?

- (a) 60 years (b) 62 years

- (c) 65 years (d) 70 years

- (e) None of the above / more than one of the above

63rd B. P.S.C. (Pre) 2017

Ans. (c)

See the explanation of the above question.

17. Salaries of the Judges of the Supreme Court are determined by —

- (a) Pay Commission appointed by the President.
(b) Law Commission
(c) Parliament
(d) Council of Ministers

U.P.P.C.S. (Mains) 2008

Ans. (c)

According to Article 125(1) of the Constitution, there shall be paid to the Judges of the Supreme Court such salaries as may be determined by Parliament by law and, until provision in that behalf is so made, such salaries are as specified in the Second Schedule.

18. What is the provision to safeguard the autonomy of the Supreme Court of India?

1. While appointing the Judges of the Supreme Court, the President of India has to consult the Chief Justice of India.
2. The Judges of the Supreme Court can be removed by the Chief Justice of India only.
3. The salaries of the Judges are charged on the Consolidated Fund of India to which the Legislature does not have to vote.
4. All appointments of officers and staffs of the Supreme Court of India are made by the Government only after consulting the Chief Justice of India?

Which of the statement(s) given above is/are correct?

- (a) 1 and 3 only (b) 3 and 4 only
(c) Only 4 (d) 1, 2, 3 and 4

I.A.S. (Pre) 2012

Ans. (a)

The Supreme Court is considered as the guardian of the Constitution. The Judges of the Supreme Court can be removed by order of the President, which must be supported by a special majority of each House of the Parliament and not by the Chief Justice of India. While appointing the Supreme Court Judges, the President of India has to consult the Chief Justice of India to safeguard the autonomy of the Supreme Court (as this provision curtails the absolute discretion of the Executive as well as ensures that the judicial appointments are not based on any political or practical considerations). The salaries of the Judges are charged to the Consolidated Fund of India. Hence statements 1 and 3 are correct. The Chief Justice of India can appoint officers and servants of the Supreme Court without any interference from the executive. He can also prescribe their condition of service.

19. Consider the following statements:

1. The Parliament cannot enlarge the Jurisdiction of the Supreme Court of India as its Jurisdiction is limited to that conferred by the Constitution.
2. The officers and servants of the Supreme Court and High Courts are appointed by the concerned Chief Justice, and the administrative expenses are charged on the Consolidated Fund of India.

Which of the statements given above is/are correct ?

- (a) 1 only (b) 2 only
(c) Both 1 and 2 (d) Neither 1 nor 2

I.A.S. (Pre) 2005

Ans. (d)

Under Article 138 of the Constitution, the Parliament can enlarge the Jurisdiction and powers of the Supreme Court with respect to any of the matters in the Union List. Thus, statement 1 is wrong. The administrative expenses of the Supreme Court, including all salaries, allowances, and pensions payable to or in respect of the officers and servants of the Court are charged on the Consolidated Fund of India while administrative expenses of a High Court are charged upon the Consolidated Fund of the State. The statement 2 is also wrong.

20. The Judges of the Supreme Court, after retirement, are permitted to carry on practice before –

- (a) Supreme Court only
(b) High Courts only

- (c) Both Supreme Court and High Court
(d) None of the Courts

U.P.P.C.S. (Pre) 1997

Ans. (d)

According to Article 124(7) of the Constitution, no person who has held office as a Judge of the Supreme Court shall plead or act in any Court or before any authority within the territory of India. While Article 220 of the Constitution provisions that no person who, after the commencement of this Constitution, has held office as a permanent Judge of a High Court shall plead or act in any Court or before any authority in India except the Supreme Court and the other High Courts.

21. Acting Chief Justice of the Supreme Court of India is appointed by-

- (a) Chief Justice of the Supreme Court
(b) Prime Minister
(c) President
(d) Law Minister

U.P.U.D.A./L.D.A. (Pre) 2001

Ans. (c)

According to Article 126 of the Indian Constitution, the Acting Chief Justice of the Supreme Court is appointed by the President of India. It is done if the post of Chief Justice is vacant or he is unable to discharge his duties. There is no provision for additional judges in the Supreme Court of India.

22. Acting Chief Justice of India is appointed by the –

- (a) Chief Justice of India
(b) Chief Justice of India with previous consent of the President
(c) President
(d) President on consultation with the Chief Justice of India

U.P.P.C.S. (Pre) 2000

Ans. (c)

See the explanation of the above question.

23. The Judges of Supreme Court of India are appointed by the President –

- (a) After recommendation by Rajya Sabha
(b) On the advice of Lok Sabha
(c) On the advice of Prime Minister
(d) In consultation with the Chief Justice of the Supreme Court

Uttarakhand U.D.A./L.D.A. (Mains) 2006, 2007

Ans. (d)

According to Article 124(2) of the Indian Constitution every Judge of the Supreme Court shall be appointed by the President after consultation with such of the Judges of the Supreme Court and of the High Courts in the States as the President may deem necessary for the purpose. However in case of appointment of a Judge other than the chief justice, the chief justice of India shall always be consulted. Consultation with the Chief Justice of India was made obligatory by a decision made in 1993. In 1998, the Supreme Court made it clear that Chief Justice of India's consultation means consultation of collegium which comprises the Chief Justice of India and four other senior-most Judges.

24. In which year was the Collegium System for the appointment of Judges adopted by the Supreme Court of India?

- (a) 1993 (b) 1996
(c) 2000 (d) 2004

Uttarakhand P.C.S. (Pre) 2016

Ans. (a)

The Collegium System for the appointment of Judges was adopted by the Supreme Court in 1993. The Collegium System has its genesis in three Supreme Court judgments collectively known as the Three Judges Cases.

25. The Supreme Court's Collegium comprises the Chief Justice of India and a few Senior Judges for recommending appointee to the Supreme Court. The number of such Senior Judges, who are part of this body, is

- (a) 3 (b) 4
(c) 5 (d) 6

U.P.P.S.C. (GIC) 2010

Ans. (b)

The Supreme Court's Collegium comprises the Chief Justice of India and 4 Senior Judges for recommending appointees to the Supreme Court.

26. Consider the following statements about the collegium system :

- The Supreme Court collegium is a five-member body, which is headed by the incumbent Chief Justice of India (CJI) and comprises four other seniormost Judges of the Court at that time.**
- The Parliament by law has evolved the collegium system.**

3. The Judges of the Supreme Court and High Courts are appointed only through the collegium system.

4. The collegium system was introduced in the year 1993 by Justice P. N. Bhagwati in the landmark First Judges Case.

Which of the above statements is/are correct?

- (a) Only 1 (b) 1 and 2
(c) 3 and 4 (d) 1 and 3

69th B.P.S.C. (Pre) 2023

Ans. (d)

The Chief Justice of India is one of the five senior judges of the Supreme Court's Collegium. They will take into consideration the promotion of judges of the Supreme Court, as well as the promotion of judges of High Courts to the position of chief justice. When there is a disagreement, the majority opinion will take precedence. The collegium approach emerged because the Indian Constitution requires consultation with the Chief Justice of India before any appointment to the judiciary. Significantly, Parliament did not establish this system. Initially, After the Second Judges Case (1993) the collegium system comprised the Chief Justice of India and the two senior-most judges of the Supreme Court. In this case Hon'ble Supreme Court of India ruled that consultation" means concurrence, binding the President to the Chief Justice's consultations.

27. Which of the following statements are correct regarding National Judicial Appointments Commission? It consists of :

- (A) The Chief Justice of India as the Ex-Officio Chairperson.
(B) Two other Senior Judges of the Supreme Court next to the Chief Justice of India, as the Ex-officio Members.
(C) The Union Minister of Law and Justice as the Ex-officio Member.
(D) Two eminent persons to be nominated by the Committee consisting of the Prime Minister, the Chief Justice of India and the Leader of Opposition in the House of the people or where there is no such Leader of Opposition, then, Leader of single largest opposition party in the House of the People Members.

Choose the correct options.

- (a) (A) and (C) (b) (B) and (D)
(c) (A) and (D) (d) All of the above

Chhattishgarh P.C.S. (Pre) 2024

Ans. (d)

Currently, India does not have a National Judicial Appointment Commission (NJAC). However, there was an attempt to establish the National Judicial Appointments Commission (NJAC), which was introduced by the 99th Constitutional Amendment Act, 2014. The NJAC was meant to replace the Collegium System for appointing judges to the Supreme Court and High Courts but was struck down by the Supreme Court in 2015 as unconstitutional.

Composition of NJAC (before it was struck down):

The NJAC was to consist of:

1. Chief Justice of India (CJI) – Chairperson
2. Two senior-most Supreme Court judges
3. Union Minister of Law and Justice
4. Two eminent persons (nominated by a committee consisting of the Prime Minister, CJI and Leader of Opposition in Lok Sabha)

Since the Supreme Court struck down NJAC, the Collegium System continues to be used for judicial appointments in India.

28. Which of the following has recommended that appointment of Judges to Higher Courts should be through the participation of the Executive, Legislature and Chief Justice?

- (a) National Commission to Review the Working of the Constitution.
- (b) National Judicial Commission
- (c) Second Administrative Reforms Commission
- (d) Report of Law Commission

U.P.P.S.C. (R.I.) 2014

Ans. (c)

The Second Administrative Reforms Commission has recommended that the appointment of Judges to Higher Courts should be done through the participation of the Executive, the Legislature, and the Chief Justice of India.

29. Which of the following type of Judge/Judges can be appointed in the Supreme Court of India?

- (i) ad hoc Judge
- (ii) Additional Judge

Codes:

- (a) (i) is true and (ii) is false
- (b) (i) is false and (ii) is true
- (c) Both (i) and (ii) are true
- (d) Both (i) and (ii) are false

M.P.P.C.S. (Pre) 2020

Ans. (a)

See the explanation of the above question.

30. Ad hoc Judges are appointed in the Supreme Court when—

- (a) Some Judges go on long leave.
- (b) No one is available for permanent appointment.
- (c) There is an abnormal increase in cases pending before the Court.
- (d) There is no quorum of the Judges available to hold.

I.A.S. (Pre) 2000

Ans. (d)

Under Article 127(1) of the Constitution, at any time if there should not be a quorum of the Judges of the Supreme Court available to hold or continue any Session of the Court, the Chief Justice of India may, with the previous consent of the President and after consultation with the Chief Justice of the High Court concerned, request in writing the attendance at the sittings of the Court, as an ad hoc Judge, for such period as may be necessary, of a Judge of a High Court duly qualified for appointment as a Judge of the Supreme Court to be designated by the Chief Justice of India.

31. The Indian Constitution provides for the appointment of “Ad hoc Judges” in—

- (a) Supreme Court
- (b) High Courts
- (c) District and Session Courts
- (d) All the above

U.P.P.S.C. (GIC) 2010

U.P.P.C.S. (Mains) 2004

Ans. (a)

See the explanation of the above question.

32. With reference to Indian judiciary, consider the following statements :

1. Any retired judge of the Supreme Court of India can be called back to sit and act as a Supreme Court judge by the Chief Justice of India with prior permission of the President of India.
2. A High Court in India has the power to review its own judgement as the Supreme Court does.

Which of the statements given above is/are correct?

- (a) 1 only
- (b) 2 only
- (c) Both 1 and 2
- (d) Neither 1 nor 2

I.A.S. (Pre) 2021

Ans. (c)

As per **Article 128**, Chief Justice of India may at any time, with the previous consent of the president, request any person who has held the office of a Judge of the Supreme Court or of the Federal Court or who has held the office of a Judge

of a High Court and is duly qualified for appointment as a Judge of the Supreme Court to sit and act as a Judge of the Supreme Court.

Article 215 : High Courts to be courts of record. Every High Court shall be a court of record and shall have all the powers of such a court including the power to punish for contempt of itself. As a court of record, a high court also has the power to review and correct its judgments or orders or decisions.

33. The minimum number of Judges of the Supreme Court required for hearing any case involving interpretation of the Constitution is –

- (a) Ten
- (b) Nine
- (c) Seven
- (d) Five

U.P.P.C.S.(Pre) 2012

Ans. (d)

There are a minimum 5 Judges of the Supreme Court required for hearing any case involving interpretation of the Constitution. It is designated as the Constitutional Bench.

34. The minimum number of Supreme Court Judges who can hear a case involving a substantial question of law as to the Interpretation of the Constitution is –

- (a) Five
- (b) Seven
- (c) Eleven
- (d) Thirteen

U.P.P.C.S. (Mains) 2012

Ans. (a)

There should be a minimum 5 or more Judges to hear a case involving a substantial question of law as to the interpretation of the Constitution. The panel generally contains judges in odd numbers for example 3, 5, 7, 9, 11 etc. This is done to avoid any clash of votes or views.

35. The power of the Supreme Court of India to decide disputes between the Centre and the State falls under its–

- (a) Advisory jurisdiction
- (b) Appellate jurisdiction
- (c) Original jurisdiction
- (d) Constitutional jurisdiction

I.A.S. (Pre) 1996, 2014

Ans. (c)

Article 131 of the Constitution of India deals with the Original jurisdiction of the Supreme Court. According to this Article the Supreme Court shall, to the exclusion of any other Court, have original jurisdiction in any dispute–

(a) between the Government of India and one or more States; or (b) between the Government of India and any State or

States on one side and one or more States on the other; or (c) between two or more States, if and in so far as the dispute involves any question (whether of law or fact) on which the existence or extent of a legal right depends.

Provided that the said jurisdiction shall not extend to a dispute arising out of any treaty, agreement, covenant, engagement, and or other similar instrument which, having been entered into or executed before the commencement of this Constitution, continues in operation after such commencement, or which provides that the said jurisdiction shall not extend to such a dispute.

36. The power of Supreme Court of India decide the disputes between Centre and States falls under which Jurisdiction

- (a) Appellate Jurisdiction
- (b) Advisory Jurisdiction
- (c) Constitutional Jurisdiction
- (d) Original Jurisdiction

M.P.P.C.S. (Pre), 2021

Ans. (d)

See the explanation of the above question.

37. The power of the Supreme Court of India to decide disputes between the Centre and the State falls under its

- (a) Appellate jurisdiction
- (b) Original jurisdiction
- (c) Advisory jurisdiction
- (d) Constitutional jurisdiction

70th B.P.S.C Re-Exam 2024

Ans. (b)

The decision regarding disputes between the centre and states falls under the original jurisdiction of the Supreme Court of India. According to Article 131 of the Indian Constitution:

(a) Between the Government of India and one or more states, or
(b) Between the Government of India and one or more states on one side, and one or more other states on the other side, or
(c) Between two or more states. Such disputes must involve a question of law or fact on which the existence or extent of a legal right depends. In such cases, the Supreme Court will have exclusive original jurisdiction.

38. Which of the following are included in the original jurisdiction of the Supreme Court?

1. A dispute between the Government of India and one or more States.
2. A dispute regarding elections to either House of the Parliament or that of Legislature of a state.

3. A dispute between the Government of India and a Union Territory.

4. A dispute between two or more States.

Select the correct answer using the codes given below:

- (a) 1 and 2 (b) 2 and 3
(c) 1 and 4 (d) 3 and 4

I.A.S. (Pre) 2012

Ans. (c)

See the explanation of the above question.

39. Which of the following statements is not true about the power of Supreme Court of India?

- (a) It has the exclusive power to issue writs to protect the fundamental rights of the People.
(b) It has original and exclusive jurisdiction in inter-governmental disputes.
(c) It has advisory jurisdiction on a question of law or fact which may be referred to it by the President of India
(d) It has power to review its own judgment or order.

U.P. P.C.S. (Mains) 2017

Ans. (a)

The Supreme Court (under Article 32) and the High Courts (under Article 226) can issue writs to protect the fundamental rights of the people. Hence it is not an exclusive power of the Supreme Court.

40. Of the following statements, which one is not correct?

- (a) Supreme Court was constituted in 1950.
(b) Supreme Court is the highest Court of appeal in the country.
(c) Supreme Court can hear from any High Court/ Tribunals except Court-martial.
(d) Supreme Court can hear from any High Court/ Tribunals as well as from Court-martial.

53rd to 55th B.P.S.C. (Pre) 2011

Ans. (c)

Armed Forces Tribunal Act, 2007 provides that the Court Martial can be appealed in the Supreme Court.

41. The Supreme Court of India is a 'Court of Record.' It implies that –

- (a) It has to keep a record of its decisions
(b) All its decisions have evidentiary value and cannot be questioned in any court.

(c) It has the power to punish for its contempt.

(d) No appeal can be made against its decisions.

U.P.P.C.S. (Pre) 2008

Ans. (b)

Under Article 129 of the Indian Constitution, the Supreme Court shall be a Court of Record and shall have all the powers of such a Court including the power to punish for contempt of itself. It implies that - (1) The judgment and proceeding are written and enrolled for perpetual memory in further proceedings. (2) the Courts have the power to punish for its contempt, thus 'Court of Record' means all the decisions have the evidentiary value and cannot be questioned in any Court. Hence options (b) and (c) both are correct but according to Uttar Pradesh Commission option (b) is the correct answer.

42. Which of the following Courts in India is/are known as the Court (s) of Record?

- (a) The High Courts only
(b) The Supreme Court only
(c) The High Courts and the Supreme Court
(d) The District Courts

U.P.P.C.S. (Mains) 2008

Ans. (c)

According to Article 129 and Article 215 of the Constitution of India, the Supreme Court and the High Courts respectively, both are to be 'Courts of Record' and shall have all the powers of such a Court including the power to punish for contempt of itself.

43. Which one of the following pairs (Article- provision) is not correctly matched?

- (a) Article 124 - Supreme Court to be a Court of Record
(b) Article 143 - Advisory Jurisdiction of Supreme Court
(c) Article 132 - Appellate Jurisdiction of Supreme Court
(d) Article 136 - Special leave to appeal by the Supreme Court

UP R.O./A.R.O. (Pre) 2023

Ans. (a)

Article 124 of the Indian Constitution deals with the Establishment and constitution of the Supreme Court. Significantly, Article 129 of the Indian Constitution empowers the Supreme Court to be a Court of Record.

44 Consider the following statements:

1. Pursuant to the report of H.N. Sanyal Committee, the Contempt of Courts Act, 1971 was passed.

2. The Constitution of India empowers the Supreme Court and the High Courts to punish for contempt of themselves.
3. The Constitution of India defines Civil Contempt and Criminal Contempt.
4. In India, the Parliament is vested with the powers to make laws on Contempt of Court.

Which of the statements given above is/are correct?

- (a) 1 and 2 only (b) 1, 2 and 4
(c) 3 and 4 only (d) 3 only

I.A.S. (Pre) 2022

Ans. (b)

In 1961 the H.N. Sanyal Committee was constituted and to pursue its recommendation, the Contempt of Courts Act, 1971 was passed.

- Under Article 129 and Article 215, the Supreme Court and High Court shall be a court of record and shall have all the power of such including the power to punish for contempt.
- The expression 'contempt of court' has not been defined by the Constitution. It has been defined in the Contempt of Courts Act 1971.
- In India, the parliament has powers to make laws on contempt of court. Thus statements 1, 2 and 4 are correct.

45. The Supreme Court holds its meetings in New Delhi, but it can meet elsewhere –

- (a) With the approval of President.
(b) If the majority of Judges of Supreme Court so decide.
(c) With the approval of Parliament.
(d) On the request of State Legislature.

U.P.P.C.S. (Spl) (Mains) 2008

Ans. (a)

The Supreme Court shall sit in Delhi or such other place or places, as the Chief Justice of India may, with the approval of the President, from time to time, appoint (Art. 130).

46. In which of the following cases, the Supreme Court of India enunciated the 'Doctrine of Basic Structure'?

- (a) Golaknath (b) A.K. Gopalan
(c) Keshvanand Bharti (d) Menka Gandhi

U.P.P.C.S. (Mains) 2012

Ans. (c)

In the case of **Keshavananda Bharti vs. the State of Kerala, (1973)** a thirteen-Judges bench of the Indian Supreme Court, by a majority of 7:6, stated that the Parliament could only amend the Constitution to the extent that it did not "damage or destroy the basic structure of the Constitution" (under Article 368). Constitutional amendments are subject to judicial review; the Court essentially placed a substantive non-legislative check upon the Parliament's power of amendment.

47. Which one of the following cases propounded the concept of 'Basic structure' of the Indian Constitution?

- (a) Indira Sahni Case
(b) Shankari Prasad's Case
(c) Rudal Shah's Case
(d) None of the above

U.P.P.C.S. (Pre) 2014

U.P. Lower Sub. (Mains) 2013

Ans. (d)

See the explanation of the above question.

48. Which of the following Articles of the Constitution of India have been declared by the Supreme Court as the 'Inviolable basic structure' of the Constitution:

Select the correct answer from the code given below:

1. Article 32 2. Article 226
3. Article 227 4. Article 245

Code :

- (a) 1, 2 and 3 (b) 1, 3 and 4
(c) 1, 2 and 4 (d) 1, 2, 3 and 4

U.P.P.C.S. (Pre) 1999

Ans. (a)

A Larger Bench of seven Judges in the Kesavananda Bharati Case unequivocally declared that the power of judicial review over legislative action vested in the High Courts under Article 226 and in the Supreme Court under Article 32 of the Constitution is an integral and essential feature of the Constitution, constituting part of its basic structure. Article 227 defines; that every High Court shall have superintendence over all courts and tribunals throughout the territories in relation to which it exercises Jurisdiction. These three Articles were declared the inviolable basic structure of the constitution of India in the Kesavananda Bharati Case.

49. The source of the 'Basic Structure Theory of the Constitution' in India is

- (a) The Constitution (b) Judicial Interpretation
(c) Opinion of the Jurists (d) Parliamentary Statute

U.P. U.D.A./L.D.A. (Mains) 2010

Ans. (b)

The Parliament could not use its amending powers under Article 368 to 'damage,' destroy,' 'abrogate,' change' or alter the 'basic structure' or framework of the Constitution. The view expressed in Keshavananda Bharati Case was subsequently approved in the Minerva Mills Case, 1980.

50. The second largest bench Constituted by the Supreme Court till date was in the –

- (a) Golaknath Case
(b) Minerva Mills Case
(c) Bank Nationalisation Case
(d) T.M.A. Pai Foundation Case

U.P.P.C.S. (Spl) (Mains) 2004

Ans. (a)

The largest bench (13 Judges) constituted by the Supreme Court till date was in the case of Keshavananda Bharati (1973). The second largest bench (11 Judges) constituted by the Supreme Court till date was in the Case of Golaknath vs. the State of Punjab (1967).

51. In which of the following cases, Supreme Court held that?

"Fundamental Rights enable a man to chalk out his life in the manner he likes best"

- (a) Indira Gandhi Vs. Raj Narain
(b) Golaknath Vs. The State of Punjab
(c) Bank Nationalization Case
(d) Azhar Vs. Municipal Corporation

U.P.P.C.S.(Pre) 2012

Ans. (b)

The Supreme Court held the above concept in the Case of Golaknath Vs. the State of Punjab.

52. Identify the incorrect pair of Case and Ruling in that case by Supreme Court:

- (a) Indira Sawhney Case- Creamy Layer for Other Backward Classes.
(b) Vishakha Case – Protection of working women against sexual harassment at their place of work.

(c) Maneka Gandhi Case – Articles 14, 19 and 21 are not mutually exclusive.

(d) Bella Banerjee Case- Right to travel abroad is a part of personal liberty.

R.A.S./R.T.S. (Pre) 2013

Ans. (d)

Bella Banerjee Case is related to the West Bengal Land Development and Planning Act, 1948. The right to travel abroad as a part of personal liberty was considered in the case of Maneka Gandhi (1978). The pair of option (d) is incorrect.

53. Consider the following statements and state which one of them is correct?

- (a) Supreme Court of India has only Original Jurisdiction.
(b) It has only Original and Appellate Jurisdiction.
(c) It has only Advisory and Appellate Jurisdiction.
(d) It has Original, Appellate as well as Advisory Jurisdiction

U.P.P.C.S. (Mains) 2010, 2013

Ans. (d)

Article 131 of the Constitution of India deals with the Original Jurisdiction of the Supreme Court; Article 132-136 deals with Appellate Jurisdiction and Article 143 deals with Advisory Jurisdiction of the Supreme Court.

54. Which of the following is concerned with the Supreme Court of India?

- (a) Collegium system
(b) Appellate jurisdiction
(c) Original jurisdiction
(d) More than one of the above
(e) None of the above

68th B.P.S.C. (Pre) 2022

Ans. (d)

As far as the Supreme Court is the concerned Collegium system, Appellate jurisdiction and Original jurisdiction are related to the apex court. Significantly, the collegium system is the system of appointment and transfer of judges that has evolved through judgments of the Supreme Court, and not by an Act of Parliament or by a provision of the Constitution. Except this, the Supreme Court is the highest Court of Appeal of all courts. Regarding Original Jurisdiction; it is important to mention here that as a Federal court, the Supreme Court decides disputes between different units of the Indian Federation. Hence, Option (d) is correct answer.

55. Which Article of the Constitution of India deals with the Appellate Jurisdiction of the Supreme Court in connection with Constitutional Cases?

- (a) Article 131
- (b) Article 132
- (c) Article 132 read with Article 134 A
- (d) Article 133 read with Article 134 A

U.P.P.C.S. (Mains) 2004

U.P.U.D.A./L.D.A. (Pre) 2002

U.P.P.C.S. (Pre) 2001

Ans. (c)

Article 131 of the Constitution of India deals with the Original Jurisdiction of the Supreme Court. Article 132 deals with the Appellate Jurisdiction of the Supreme Court in appeals from High Courts in the Following cases - any Judgement, decree or Final order of a High Court in the territory of India, whether in a civil, criminal or other proceeding. While Article 133 deals with the Appellate Jurisdiction of the Supreme Court in appeals from High Courts regarding civil matters. Article 134A deals with a certificate for an appeal to the Supreme Court. Thus, during constitutional disputes reading Article 134A together with Article 132 creates appellate jurisdiction of the Supreme Court.

56. All the cases regarding interpretation of the Constitution can be brought to the Supreme Court under its—

- (a) Original Jurisdiction
- (b) Appellate Jurisdiction
- (c) Advisory Jurisdiction
- (d) None of the above

U.P. Lower Sub. (Mains) 2013

Ans. (b)

All the cases regarding the interpretation of the Constitution can be brought to the Supreme Court under its Appellate Jurisdiction. The Appellate Jurisdiction of the Supreme Court can be divided into the following heads.

- (i) The Appellate Jurisdiction of the Supreme Court in appeals from High Courts of any judgment, decree or order passed by High Court in the territory of India whether in Civil, criminal or another proceeding, that involves a substantial question of law or interpretation of the Constitution (Article 132).

- (ii) The Appellate Jurisdiction of the Supreme Court in appeals from High Courts regarding civil matters (whether or not containing Constitutional questions) (Article-133).
- (iii) The Appellate Jurisdiction of the Supreme Court regarding criminal matters (whether or not containing Constitutional questions) (Article-134),
- (iv) The Special Leave appeal by the Supreme Court (Article-136).

57. Curative Petition in India can be filed in Supreme Court under Article –

- (a) 138
- (b) 140
- (c) 142
- (d) 146

U.P.P.C.S. (Mains) 2014

Ans. (c)

The concept of Curative Petition was evolved by the Supreme Court of India in the case of Rupa Ashok Hurra Vs. Ashok Hurra, 2002. According to the decision of the Supreme Court, the Curative Petition can be appealed in the Supreme Court under Article 142 of the Constitution.

58. Which Article of the Constitution permits the Supreme Court to review its judgement or order?

- (a) Article 137
- (b) Article 130
- (c) Article 139
- (d) Article 138

U.P.P.C.S. (Mains) 2009

Ans. (a)

Under Article 137, the Supreme Court has the power to review its judgement subject to the provision of any law made by Parliament or any rule made under Article 145 of the Indian Constitution.

59. Which one of the following is correct with regard to the power to review any judgment pronounced or order made by the Supreme Court of India?

- (a) The President of India has the power of review such judgment or order.
- (b) The Supreme Court has the power to review its judgment or order.
- (c) The Cabinet has the power to review such judgment or order with the permission of the President of India.
- (d) The Supreme Court does not have the power to review its judgment or order.

U.P.P.C.S. (Mains) 2011

Ans. (b)

See the explanation of the above question.

60. Which one of the following is correct about the Supreme Court regarding its Judgment?

- (a) It can change the Judgment
- (b) It can not change the Judgment
- (c) Only the Chief Justice of India can change the Judgment
- (d) Only the Ministry of Law can change the Judgment.

U.P.P.C.S. (Mains) 2005

Ans. (a)

According to Article 137 subject to the provision of any law made by the Parliament or any rules made under Article 145, the Supreme Court shall have the power to review any Judgment or order.

61. With reference to the constitution of India, prohibitions or limitations or provisions contained in ordinary laws cannot act as prohibitions or limitations on the constitutional powers under Article 142. It could mean which one of the following?

- (a) The decisions taken by the Election Commission of India while discharging its duties cannot be challenged in any court of law.
- (b) The Supreme Court of India is not constrained in the exercise of its powers by laws made by the Parliament.
- (c) In the event of grave financial crisis in the country, the President of India can declare Financial Emergency without the counsel from the Cabinet.
- (d) State Legislatures cannot make laws on certain matters without the concurrence of Union Legislature.

I.A.S. (Pre) 2019

Ans. (b)

Article 142 - enforcement of decrees & orders of the Supreme Court and unless as to discovery etc. (1) The Supreme Court in the exercise of its jurisdiction may pass such decree or make such order as is necessary for doing complete justice in any cause or matter pending before it, and any decree so passed or orders so made shall be enforceable throughout the territory of India such manner as 'may be prescribed by or under any law by parliament and until provision in that behalf is so made, in such manner as the president may by order prescribe.

62. In India, Judicial Review implies

- (a) the power of the Judiciary to pronounce upon the constitutionality of laws and executive orders.
- (b) the power of the Judiciary to question the wisdom of the laws enacted by the Legislatures.

(c) the power of the Judiciary to review all the legislative enactments before they are assented to by the President

(d) the power of the Judiciary to review its own judgments given earlier in similar or different cases.

I.A.S. (Pre) 2017

Ans. (a)

The Judicial Review means the power of the Judiciary to interpret the Constitution and to declare any such law or order of the Legislature and Executive void, if it finds it in conflict with the Constitution of India.

63. Judicial Review means that the Supreme Court –

- (a) Has final authority over all issues.
- (b) Can charge allegations against President.
- (c) Can review the issues decided by High Courts.
- (d) Can declare illegal any law of the State.

39th B.P.S.C. (Pre) 1994

Ans. (d)

See the explanation of the above question.

64. Judicial Review implies the right of the Court to –

- (a) Declare any law or order invalid if it is in conflict with the Constitution.
- (b) Review the order of the Lower Courts.
- (c) Hear appeals against the decision of the Lower Courts.
- (d) Review the laws to see that they have been passed as per the procedure laid down.

U.P.P.C.S. (Pre) 1994

Ans. (a)

See the explanation of the above question.

65. Consider the following statements :

1. The Constitution of India defines its 'basic structure' in terms of federalism, secularism, fundamental rights and democracy.
2. The Constitution of India provides for 'judicial review' to safeguard the citizens' liberties and to preserve the ideals on which the Constitution is based.

Which of the statements given above is/are correct?

- (a) 1 only
- (b) 2 only
- (c) Both 1 and 2
- (d) Neither 1 nor 2

I.A.S. (Pre) 2020

Ans. (b)

The doctrine of 'Basic Structure' itself cannot be found in the Constitution, because this concept was recognised for the first time in the Keshwanand Bharti Case (1973) by the Supreme Court. Hence statement 1 is wrong. According to Article 13:

- (1) All laws in force in India's territory immediately before the commencement of this Constitution, in so far as they are inconsistent with the provisions of this Part, shall to the extent of such inconsistency, be void.
- (2) The State shall not make any law which takes away or abridges the rights conferred by this Part and any law made in contravention of this clause shall, to the extent of the contravention, be void. Hence, statement 2 is correct.

66. In India, the power of Judicial Review is enjoyed by?

- (a) The Supreme Court alone
- (b) The Supreme Court as well as High Courts
- (c) All the Courts
- (d) None of the above

U.P. P.C.S. (Mains) 2017

Ans. (b)

The doctrine of Judicial Review has been originated and developed in the USA.

It was propounded for the first time in the famous case of Marbury v/s Madison (1803) by John Marshall, the then Chief Justice of the American Supreme Court.

The Constitution of India confers the power of Judicial review to both the Supreme Court as well as High Courts.

The Supreme Court has declared the power of Judicial Review as a basic structure of the Constitution.

67. With reference to the Constitution of India, consider the following statements:

1. No High Court Shall have the Jurisdiction to declare any central law to be constitutionally invalid.
2. An amendment to the Constitution of India cannot be called into question by the Supreme Court of India.

Which of the statements given above is/are correct?

- (a) 1 only
- (b) 2 only
- (c) Both 1 and 2
- (d) Neither 1 nor 2

I.A.S. (Pre) 2019

Ans. (d)

The 42nd Amendment Act of 1976 curtailed the judicial review of the high court. It debarred the high courts from considering the constitutional validity of central law. However, the 43rd Amendment Act of 1977 restored the original provision.

The High court has the power to invalidate any central law which goes against the ethos of the Constitution. Similar is the case with the Supreme Court. If any constitutional amendment goes against the basic structure of the Constitution the supreme court has the power to call it into question. Hence both the statements are wrong.

68. The system of Judicial Review, is prevalent in

- (a) India only
- (b) U.K. only
- (c) U.S.A. only
- (d) Both in India and U.S.A.

U.P.P.C.S. (Mains) 2013

Ans. (d)

The judicial review is the doctrine under which the Legislative and the Executive actions are subject to review by the Judiciary. Article 13 of the Constitution of India provides for Judicial review. While the Parliament is the supreme body of the United Kingdom and law made by it cannot be challenged in Court.

69. Assertion (A) : The scope of Judicial review is limited in India.

Reason (R) : Indian Constitution is “a bag of borrowing.”

Select the correct answer using the codes given below.

Codes :

- (a) Both (A) and (R) are true and (R) is the correct explanation of (A).
- (b) Both (A) and (R) are true but (R) is not the correct explanation of (A).
- (c) (A) is true but (R) is false.
- (d) (A) is false but (R) is true.

U.P.P.C.S. (Mains) 2002

Ans. (b)

Assertion (A) is correct, because the scope of Judicial review is limited in India. It has three main reasons;

- (i) The Judiciary reviews Legislative functions, especially if that law affects the Basic structure of the constitution.
- (ii) In some of its distinguished Judgements, the Supreme Court has defined the outline of sovereign power as distributed amongst the three branches of government namely, the Legislature, the executive and the Judiciary.
- (iii) The huge size of the Indian Constitution also reduces the scope of Judicial review.

Reason (R) is correct as Indian Constitution borrowed many features and principles from Constitutions of other countries. Since Reason (R) is not the correct explanation of Assertion (A) the correct answer will be option (b).

70. In essence, what does 'Due Process of Law' mean?

- (a) The principle of natural justice
- (b) The procedure established by law
- (c) Fair application of law
- (d) Equality before law

I.A.S. (Pre.) 2023

Ans. (a)

Due Process of Law is a principle that makes sure that the procedure used to make a law is free from arbitrariness and irrationality and Natural Justice implies fairness, reasonableness, equity and equality. Natural Justice is a concept of Common Law and it is analogous to the American concept of procedural due process. There are mainly two Principles of Natural Justice which are: 'Nemo iudex in causa sua' - No one should be made a judge in his own cause and the rule against bias; 'Audi alteram partem' means to hear the other party or no one should be condemned unheard. The principles of natural justice are firmly grounded under various Articles of the Constitution such as Articles 14 and 21. To remove the arbitrariness, the Supreme Court of India recognised the principle of Due Process of Law in the Maneka Gandhi case. Hence option (a) is the correct answer.

71. Judicial review in the Indian Constitution is based on –

- (a) Due Process of Law
- (b) Procedure established by Law
- (c) Rule of Law
- (d) Precedents and conventions
- (e) None of the above

Chhattisgarh P.C.S. (Pre) 2015

Ans. (b)

An independent Judiciary, having the power of 'Judicial Review' is a prominent feature of the Indian Constitution. The Constitution of India establishes the doctrine of Judicial Review in the following Articles : 13, 32, 136, 137, 226 and 227. In India, the concept of Judicial review is based on the Procedure established by law.

72. Judicial process in India is based on

- (a) the Constitution
- (b) the due process of routine law
- (c) conventions
- (d) the procedure established by law
- (e) None of the above/More than one of the above

67th B.P.S.C. (Pre), 2022

Ans. (e)

Judicial process in India is based on procedure established by law, constitution, conventions as well as the due process of routine law. Article 14 provides that the state shall not deny to any person equality before law or equal protection of laws within the territory of India. The concept of equal protection of laws is borrowed from the American Constitution and equality of law is borrowed from British Constitution.

73. A Constitution (Amendment) Act may be declared unconstitutional by the Supreme Court of India if it –

- (a) Establishes three-tier federal set up in place of the existing two tier-set up.
- (b) Removes Right of Equality before the law from Part III and places it elsewhere in the Constitution.
- (c) Replaces Parliamentary System of Executive with the Presidential one.
- (d) Establishes a Federal Court of Appeal to lighten the burden of the Supreme Court.

I.A.S. (Pre) 2009

Ans. (b)

A Constitution (Amendment) Act may be declared unconstitutional by the Supreme Court of India if it removes the Right of Equality before the law from Part III and places it elsewhere in the Constitution because Article 13(2) states that the State shall not make any law which takes away or abridges the rights conferred by this Part and any law made in contravention of this clause shall, to the extent of the contravention, be void.

74. The Supreme Court is a

- (a) federal court
- (b) protector of human rights
- (c) final interpreter of the Constitution
- (d) civil court
- (e) None of the above/More than one of the above

67th B.P.S.C. (Pre) (Re- Exam), 2022

Ans. (e)

The Supreme Court of India is the highest judicial court and the guarantor of the fundamental rights of citizens and the guardian of the Constitution.

75. Who has the last authority to explain the Constitution?

- (a) President
- (b) Attorney General of India
- (c) Speaker of Lok Sabha
- (d) Supreme Court

M.P.P.C.S. (Pre) 1994

Ans. (d)

The Supreme Court has the final authority to interpret the Constitution. The Supreme Court has been declared as the Guardian or Custodian of the Constitution.

76. Who is the custodian of Indian Constitution?

- (a) President (b) Parliament
(c) Council of Ministers (d) Supreme Court

M.P.P.C.S. (Pre) 2010, 2015

Ans. (d)

See the explanation of the above question.

77. Who is known as the custodian of the Indian Constitution?

- (a) The Parliament (b) The President
(c) The Supreme Court (d) None of the above

M.P.P.C.S. (Pre) 2016

Ans. (c)

See the explanation of the above question.

78. Which of the following is the custodian of the Constitution of India?

- (a) The President of India
(b) The Prime Minister of India
(c) The Lok Sabha Secretariat
(d) The Supreme Court of India

I.A.S. (Pre) 2015

Ans. (d)

The Supreme Court is the custodian or the Guardian of the Constitution of India. The Constitution of India is the Supreme Law of India. It is a living document. It lays down the framework defining fundamental political principles, establishes the structure, procedures, powers and duties of the Government institutions and sets out Fundamental Rights, Directive Principles and the Duties of Citizens.

79. The Guardianship of Indian Constitution is vested in:

- (a) President (b) Lok Sabha
(c) Supreme Court (d) Council of Ministers

U.P.P.C.S. (Pre) 2015

Ans. (c)

See the explanation of the above question.

80. Given below are two statements, one is labelled as Assertion (A) and the other as Reason (R).

Assertion (A) : The Supreme Court of India has exclusive jurisdiction regarding Constitutional Validity of Central laws.

Reason (R) : The Supreme court is the Guardian of the India Constitution.

Select the correct answer from the codes given below:

Codes :

- (a) Both (A) and (R) are true and (R) is the correct explanation of (A).
(b) Both (A) and (R) are true, but (R) is not the correct explanation of (A).
(c) (A) is true, but (R) is false
(d) (A) is false, but (R) is true.

U.P.P.C.S. (Pre) 2019

Ans. (d)

The High Courts of States also have jurisdiction regarding the Constitutional validity of central laws. The Supreme Court (under article 32) and the High Courts (under article 226) can issue writs to protect the fundamental rights of the people. Hence the Supreme Court does not have exclusive jurisdiction in this case. The Supreme Court is the custodian or the Guardian of the Constitution of India. UPPSC has considered option (a) as the correct one which is wrong.

81. Which of the following cases comes under the Jurisdiction of High Court and Supreme Court?

- (a) Dispute between the Centre and States.
(b) Dispute between States.
(c) Enforcement of Fundamental Rights.
(d) Protection from violation of the Constitution.

U.P. Lower Sub. (Pre) 2004

U.P.P.C.S. (Mains) 2006

I.A.S. (Pre) 1993

Ans. (c)

Enforcement of Fundamental Rights comes under the Jurisdiction of the Supreme Court under Article 32 of the Indian Constitution whereas High Court derives its Jurisdiction under Article 226 for enforcement of Fundamental Rights. Disputes between States and Centre and State is the original jurisdiction of the Supreme Court as enumerated in Article 131 of the Indian Constitution.

82. Under which Article of the Constitution of India Supreme Court safeguards the Fundamental Rights of the Indian citizens?

- (a) 74 (b) 56
(c) 16 (d) 32

U.P.P.S.C.(GIC) 2010

Ans. (d)

Article 32 of the Indian Constitution is the “Right to Constitutional Remedies” for the enforcement of rights conferred by Part III, i.e., Fundamental Rights. Supreme Court has the power to issue directions, orders or writs to safeguard the fundamental Right.

83. The power to enlarge the jurisdiction of the Supreme Court of India with respect to any matter included in the Union List of Legislative Powers rests with –

- (a) The President of India
- (b) The Chief Justice of India
- (c) The Parliament
- (d) The Union Ministry of Law, Justice and Company Affairs

I.A.S. (Pre) 2003

Ans. (c)

According to Article 138(1) of the Constitution, the Supreme Court shall have such further jurisdiction and powers with respect to any of the matters in the Union List as Parliament may by law confer.

84. By whom the jurisdiction of the Supreme Court of India can be enlarged?

- (a) President of India
- (b) Parliament by passing a resolution
- (c) Parliament by making a law
- (d) President in consultation with Chief Justice of India

Uttarakhand P.C.S. (Pre) 2012

Ans. (c)

The jurisdiction of the Supreme Court of India can be enlarged by the Parliament by making a law. According to Article 138 of the Indian Constitution, the Parliament can enlarge the additional jurisdiction and the powers of the Supreme Court by making a law.

85. Who has the right to seek advisory opinion of the Supreme Court on any question of law –

- (a) Prime Minister
- (b) President
- (c) Any High Court
- (d) All of the above

U. P. P. S.C. (GIC) 2010

U.P.P.C.S. (Pre) 2012

Ans. (b)

Article 143 of the Constitution of India deals with the ‘Power of President to Consult Supreme Court.’

86. Under which Article, the President of India refer to the Supreme Court regarding the process of appointment and transfer of Judges in the Supreme Court and High Courts?

- (a) Article 127 sub clause (1)
- (b) Article 143 sub clause (1)
- (c) Article 143 sub Clause (11)
- (d) Article 144 sub Clause (1)

U.P. Lower Sub. (Pre) 1998

Ans. (b)

Under Article 143 sub-clause (1), President can obtain the opinion of the Supreme Court on the question of law or fact that is of such nature and of such public importance that it is expedient to get the opinion of the Supreme Court. He may refer the question to that Court for consideration. So under 143 (1), the President of India can refer to the Supreme Court regarding the process of appointment and transfer of Judges in the Supreme Court and High Courts of India.

87. Which of the following statements regarding the Advisory Jurisdiction of the Supreme Court is correct?

- (1) It is binding on the Supreme Court to give its opinion on any matter referred to it by the President.
- (2) The full bench of the Supreme Court hears any reference made to it under its power of Advisory Jurisdiction.
- (3) The opinion given by the Supreme Court on a reference under Advisory Jurisdiction is not binding on the government.
- (4) Not more than one reference at a time can be made to the Supreme Court under its power of Advisory Jurisdiction.

Select the answer from the codes given below-

- (a) 1 and 2
- (b) 1 and 3
- (c) 2 and 3
- (d) 2 and 4

I.A.S. (Pre) 1994

Ans. (c)

According to Article 143, the President can take the advice of the Supreme Court on the following topics - (1) matter of fact or law related to public importance, (2) any former Constitutional treaty, agreement or other equivalent subjects. In the first case the Supreme Court is not bound to give advice, but in the second case, the Supreme Court

has to give its opinion. The full bench (of 5 members) of the Supreme Court hears any reference made to it under Advisory Jurisdiction. The advice given by the Court is not binding on the Government. Thus option (c) is correct.

88. The advisory powers of the Supreme Court of India imply that it may

- (a) Advise to the President on the issues of law or fact which are of public importance.
- (b) Advise to the government of India on all Constitution matters.
- (c) Advise to the Prime Minister on legal matters.
- (d) Advise to all the above persons.

U.P.P.C.S. (Mains) 2016

Ans. (a)

See the explanation of the above question.

89. The Supreme Court of India tenders advice to the President on a matter of law or fact:

- (a) On its initiative
- (b) Only if he seeks such advice
- (c) Only if the matter relates to the Fundamental Rights of citizens
- (d) Only if the issue poses a threat to the unity and integrity of the country

I.A.S. (Pre) 2001

Ans. (b)

Under Article 143(1) of the Indian Constitution, the Supreme Court of India Acts as an advisory body to the President of India who can ask for advice on any matter of law or fact of public importance.

90. Consider the following statements:

The Supreme Court of India tenders advice to the President of India on matters of law or fact.

1. On its initiative (on any matter of larger public interest).
2. If he seeks such advice.
3. Only if the matters is related to the Fundamental Rights of the citizens.

Which of the statements given above is/are correct?

- (a) 1 only
- (b) 2 only
- (c) 3
- (d) 1 and 2

I.A.S. (Pre) 2010

Ans. (b)

See the explanation of the above question.

91. Under which Article of the Indian Constitution did the President make a reference to the Supreme Court to seek the Court's opinion on the Constitutional validity of the Election Commission's decision on deferring the Gujarat Assembly Elections (in the year 2002)?

- (a) Article 142
- (b) Article 143
- (c) Article 144
- (d) Article 145

I.A.S. (Pre) 2003

Ans. (b)

In August 2002, the then President Dr. Abdul Kalam sought advice from the Supreme Court under Article 143 in connection with the controversy between the Election Commission and the Government on elections in Gujarat. The issues related to the limits on the powers of the Election Commission under Article 324, the impact of Article 174 on the Jurisdiction and powers of the Commission and whether the Commission could recommend promulgation of the President's rule in a State.

92. "I will bear true faith and allegiance to the Constitution of India.....uphold the Sovereignty and Integrity of India..... Perform the duties of my office... uphold the Constitution and Law." it is the form of Oath taken by –

- (a) The President of India
- (b) The Chief Justice of India
- (c) The Member of Parliament
- (d) The Governor

U.P.P.C.S. (Spl) (Mains) 2004

Ans. (b)

The Third Schedule to the Constitution of India contains the forms of the oaths or affirmations for Union and State Ministers, Members of Parliament, Members of State Legislatures, Judges of the Supreme Court and the High Courts, and the Comptroller and Auditor-General of India. There are 10 forms of oaths or affirmations included in the Third Schedule. The given form of oath is prescribed for the Chief Justice of India and the Comptroller and Auditor General of India.

93. Who has the right to transfer any case anywhere in India?

- (a) President
- (b) Supreme Court
- (c) High Court
- (d) None of these

M.P.P.C.S. (Pre) 2010

Ans. (b)

According to Article 139A, the Supreme Court can transfer any case anywhere in India. Where cases involving the same or substantially the same questions of law are pending before the Supreme Court and one or more High Courts or before two or more High Courts and the Supreme Court is satisfied on its motion or on an application made by the Attorney-General of India or by a party to any such case that such questions are substantial questions of general importance, the Supreme Court may withdraw the case or cases pending before the High Court or the High Courts and dispose of all the cases itself.

94. Match List-I with List-II and identify the correct answer from the code given below:

List -I (Case)	List -II (Subject)
(A) A.K. Gopalan Vs. State of Madras	(i) Equality in admission to educational institutions
(B) Romesh Thapar Vs. State of Madras	(ii) Parliament's power to amend the Constitution
(C) Shankari Prasad Vs. Union of India	(iii) Procedure for preventive detention
(D) Champakam Dorairajan Vs. State of Madras	(iv) Restriction on Free speech

Code :

	A	B	C	D
(a)	i	ii	iii	iv
(b)	iii	iv	i	ii
(c)	ii	iv	i	iii
(d)	iv	iii	ii	i

R.A.S./R.T.S. (Pre) (Re. Exam) 2013

Ans. (*)

The matched list is as follows –

A.K. Gopalan Vs. State of Madras	- Procedure for preventive detention
Romesh Thapar Vs. State of Madras	- Restrictions on free speech
Shankari Prasad Vs. Union of India	- Parliament's power to amend the Constitution
Champakam Dorairajan Vs. State of Madras	- Equality in admission to educational institutions

95. Which of the following case is related to zamindari system?

1. Kameshwar Singh v/s State of Bihar
2. Ramesh Thaper v/s State of Madras
3. Motilal v/s State of Uttar Pradesh
4. State of West Bengal v/s Subodh Gopal

- (a) 1, 2 and 3
(b) 2 and 4
(c) 1, 2, 3 and 4
(d) 1 and 2

Jharkhand P.C.S. (Pre) 2021

Ans. (c)

In the above question option (c) is the correct option. The above cases Kameshwar Singh v/s State of Bihar, Ramesh Thaper v/s State of Madras, Motilal v/s State of Uttar Pradesh and State of West Bengal v/s Subodh Gopal is related to the Zamindari system.

96. Supreme Court's judgement of Indra Sawhney Vs Union of India Case is related to which issue ?

- (a) Regarding the issue of OBC reservation in Government employment
(b) Basic Structure Theory
(c) Approve the reservation on promotion of SC
(d) Extended reservation for ST
(e) None of the above / More than one of the above

66th B.P.S.C. (Pre) (Re- Exam), 2020

Ans. (a)

In Indra Sawhney vs Union of India and Others, 1992 The Supreme Court held that the reservation under Article 15 (4) and 16 (4) should not exceed 50 percent and the States and the Union have by and large accepted this as correct and it should be held as Constitutional Prohibition and any reservation beyond 50 per cent would be liable to be struck down.

97. Under which article, Supreme Court recently declared Migrants (Determination by Tribunal) Act, 1983 as unconstitutional for violation of the sacred duty of centre?

- (a) Article - 355
(b) Article - 356
(c) Article - 256
(d) Article - 257

U.P.P.C.S. (Pre) 2002

Ans. (a)

The Supreme Court of India on 13 July, 2005, by its judgment held the Illegal Migrants (Determination by Tribunals) Act, 1983 as unconstitutional under Article 355 of the Constitution. A bench of three judges struck down the Act and observed that 'the presence of such a large number of illegal migrants from Bangladesh is, in fact, an aggression on the State of Assam and causing a serious internal disturbance.

98. TDSAT judgments can be challenged in the:

- (a) TRAI, High Court, Supreme Court
- (b) TRAI and Supreme Court
- (c) High Court and Supreme Court
- (d) Supreme Court only

U.P.P.C.S. (Mains) 2003

Ans. (c)

In order to bring in functional clarity and strengthen the regulatory frame work and the dispute settlement mechanism in the telecommunication sector, the TRAI Act of 1997 was amended in the year 2000 and TDSAT (Telecom Disputes settlement and Appellate Tribunal) was setup to adjudicate disputes and dispose of appeals. Regarding Telecom, Broadcasting and Airport tariff matters, the Tribunal's orders can be appealed to the Supreme Court but only on substantial questions of law, while in regard to cyber issues, the Tribunal's order can be appealed before High Court. Thus the correct answer is an option (c).

99. Who was the Chief Justice of India for the shortest duration?

- (a) Rajendra Mal Lodha (b) S. Rajendra Babu
- (c) Gopal Ballav Pattanaik (d) Kamal Narain Singh

Chhattisgarh P.C.S. (Pre) 2021

Ans. (d)

According to the question, Answer is the following—
Rajendra Mal Lodha — 27.04.2014 — 27.09.2014
S. Rajendra Babu — 02.05.2004 — 31.05.2004
Gopal Ballav Pattanaik — 08.11.2002 — 18.12.2002
Kamal Narain Singh — 25.11.1991 — 12.12.1991
Thus Kamal Narain Singh was the Chief Justice of India for shortest duration.

100. The correct sequence of Chief Justice of Supreme Court of India is -

- (a) B.P. Sinha, P.B. Gajendragadkar, S.R. Das
- (b) K.G. Balakrishnan, S.H. Kapadia, H.L. Dattu

- (c) Ranjan Gogoi, N.V. Raman, Deepak Mishra
- (d) H.L. Dattu, T.S. Thakur, Jagdish Singh Khehar

R.A.S./R.T.S. (Pre) 2021

Ans. (d)

According to the question, the correct sequence of Chief Justice of Supreme Court are - Justice S.R. Das (1.2.1956 to 30.9.1959), Justice B.P. Sinha (1.10.1959 to 31.01.1964), Justice P.B. Gajendragadkar (1.02.1964 to 15.03.1966), Justice K.G. Balakrishnan (14.01.2007 to 12.05.2010), Justice S.H. Kapadia (12.05.2010 to 28.09.2012), Justice **H.L. Dattu** (28.09.2014 to 02.12.2015), Justice **T.S. Thakur** (03.12.2015 to 03.01.2017), Justice **Jagdish Singh Khehar** (04.01.2017 to 27.08.2017), Justice Deepak Mishra (28.08.2017 to 02.10.2018), Justice Ranjan Gogoi (03.10.2018 to 17.11.2019), Justice Sharad Arbind Bobde (18.11.2019 to 23.04.2021), Justice N.V. Raman (24.04.2021 to 26-08-2022), Uday Umesh Lalit (27-08-2022 to 8-11-2022), Dhanajaya Yeshwant Chandrachud (9-11-2022 to 10-11-2024), Justice Sanjiv Khanna (11-11-2024 till now).

101. Which of the following statements is/are true about previous Chief Justice of India, Yashwant Vishnu Chandrachud?

Statement-I : He was 16th Chief Justice of India

Statement-II : Till date, he is the longest serving Chief Justice of India

Statement-III : He was appointed by Neelam Sanjiva Reddy

From the statements given above, which is/are true?

- (a) I, II and III (b) I and II
- (c) I and III (d) Only II

Chhattisgarh P.C.S. (Pre) 2021

Ans. (a)

Justice Yashwant Vishnu Chandrachud was 16th Chief Justice of India serving from 22 February, 1978 to 11 July, 1985. Till date he is longest serving Chief Justice of India. He was appointed by Neelam Sanjiva Reddy.

102. Fathima Beevi died recently. Consider the following statements regarding her :

1. She was the first woman judge of the Supreme Court of India.
2. She served as the Governor of Kerala from 1997-2001.

3. She was the first Muslim woman to enter into higher judiciary.

Select the correct answer from the codes given below:

- (a) 1 and 2 (b) 1 and 3
(c) Only 1 (d) 1, 2 and 3

U.P.P.C.S. (Pre) 2024

Ans. (b)

Justice M. Fathima Beevi died on 23 November, 2023. She became the first woman Judge of the Supreme Court of India, in 1989.

She was the first muslim woman to enter into the higher judiciary. After retirement from the apex court in 1992, she was a member of National Human Rights Commission during year 1993 to 1997. She became governor of Tamil Nadu (not of Kerala) for year 1997 to 2001. Therefore, the statements 1 and 3 are correct, while, 2 is not correct.

103. Which of the following posts was held by A.S. Anand in late 1990's?

- (a) Comptroller and Auditor General
(b) Chief Justice of India
(c) Chief Vigilance Commissioner
(d) Attorney General
(e) None of the above/More than one of the above

67th B.P.S.C. (Pre), 2021

Ans. (b)

Adarsh Sein Anand was the 29th Chief Justice of India, serving from 10 October, 1998 to 31 October, 2001.

104. Fathima Beevi, who recently passes away, she is the India's first :

- (a) Woman to climb Mount Everest
(b) Woman Judge of Supreme Court
(c) Woman Chief Minister
(d) None of the above

Chhattisgarh P.C.S. (Pre) 2023

Ans. (b)

Justice Fathima Beevi was the first woman Judge of the Supreme Court. Apart from being the first woman Judge of the apex court, she was the first chairperson of the National Human Rights Council and the first Muslim female Governor of India (Tamil Nadu).

105. Which one of the following is appointed as the fourth female Judge of Supreme Court in April 2010?

- (a) Justice Fathima Beevi
(b) Justice Sujata Manohar

- (c) Justice Gyan Sudha Misra
(d) Justice Ruma Pal

U.P. Lower Sub. (Pre) 2008 (*)

Ans. (c)

At the time when the question was asked, Justice Gyan Sudha Mishra was the only female Judge of the Supreme Court. She was elevated as a Judge of the Supreme Court of India on 30 April 2010. Earlier she worked as Chief Justice of Patna High Court. Previously, Justice Fatima Beevi, Judge Sujata Manohar and Justice Ruma Pal have served as Judge of Supreme Court. Justice Ranjana Prakash Desai is the fifth female Judge of the Supreme Court of India, and served from 13 September 2011 to 29 October 2014. Presently, the Supreme Court has two sitting woman Judges namely, Bela Trivedi and B.V. Nagarathna.

106. Who amongst the following, recently appointed as Supreme Court judge, was not earlier judge of a High Court?

- (a) D. Y. Chandrachud (b) A.M. Khanwilkar
(c) L. Nageshwara Rao (d) Ashok Bhushan

U.P.P.C.S. (Mains) 2016

Ans. (c)

Justice L. Nageshwara Rao served as a Judge of the Supreme Court of India. He was the 7th person elevated directly from the Bar to the Supreme Court of India and was sworn in on 13th May, 2016 and retired on 07-06-2022.

107. Before his appointment as a judge of the Supreme Court of India in July 2024, Justice N. Kotiswar Singh was the Chief Justice of which High Court?

- (a) Jammu and Kashmir and Ladakh High Court
(b) Madras High Court
(c) Bombay High Court
(d) Gauhati High Court

70th B.P.S.C. Pre-2024

Ans. (a)

In July 2024, before being appointed as a judge of Supreme Court of India, Justice N. Kotiswar Singh was the Chief Justice of Jammu & Kashmir and Ladakh High Court. On 18th July 2024, he took the oath as a judge of Supreme Court of India.

On 5th December 2024, the person who took the oath as a judge of the Supreme Court was Justice Manmohan, who previously served as the Chief Justice of the Delhi High Court.

108. Who among the following chief justice of Madhya Pradesh High Court has not been the judge at Supreme Court of India?

- (a) Justice A. K. Patnaik
- (b) Justice R.V. Raveendran
- (c) Justice S.K. Jha
- (d) Justice A. K. Mathur

M.P.P.C.S. (Pre) 2020

Ans. (c)

Justice S.K. Jha, among the above chief Justice of the Madhya Pradesh High Court, has not been the Judge of the Supreme Court of India.

109. Which one of the following judges of Supreme Court of India has not worked in Rajasthan High Court as judge?

- (a) Justice N.M. Kasliwal
- (b) Justice B.S. Chouhan
- (c) Justice A.K. Mathur
- (d) Justice R.C. Lahoti

R.A.S/R.T.S (Pre) - 2018

Ans. (d)

Ramesh Chandra Lahoti was the 35th Chief Justice of India serving from 1 June 2004 to 1 November 2005. He joined the Bar in Guna District (MP) in 1960 and enrolled as an advocate in 1962.

110. Who was the Chief Justice of India when Public Interest litigation was introduced in the Indian Judicial System?

- (a) M. Hidayatullah
- (b) A.M. Ahmedi
- (c) P.N. Bhagwati
- (d) A.S. Anand

U.P. P.C.S. (Pre) 2018

Ans. (*)

Prafullachandra Natwarlal Bhagwati (PN Bhagwati) accepted a case (Kapila Hingorani had filed a petition) which came to be known as Hussainara Khatoon v/s State of Bihar (1979). It was the first time when a case based on Public Interest Litigation was taken into consideration. During this time the Chief Justice of India was Y.V. Chandrachud, whereas P. N. Bhagwati became the 17th Chief Justice of India and was in office from 12 July 1985 - 20 Dec 1986. Thus none of the given options is appropriate.

111. Public Interest Litigations was introduced by –

- (a) A Parliamentary Act
- (b) A Constitutional Amendment
- (c) Judicial initiative
- (d) None of the above

U.P.P.C.S. (Mains) 2008

Ans. (c)

The concept of Public Interest Litigation (PIL) agrees with the principles enshrined in Article 39A of the Constitution of India to protect and deliver prompt Social Justice with the help of law. Before the 1980s, only the aggrieved party could approach the Courts for justice. After the Emergency era, the Supreme Court reached out to the people, devising a means for any person of the public (or an NGO) to approach the court seeking legal remedy in cases where the public interest is at stake. Justice P. N. Bhagwati and Justice V. R. Krishna Iyer were among the first Judges to admit PILs in court. PIL can be filed both in the High Courts and the Supreme Court.

112. Consider the following statements:

1. Justice V.R. Krishna Iyer was the Chief Justice of India.
2. Justice V.R. Krishna Iyer is considered as one of the progenitors of Public Interest Litigation (PIL) in the Indian Judicial System.

Which of the statement(s) given above is/are correct?

- (a) 1 only
- (b) 2 only
- (c) Both 1 and 2
- (d) Neither 1 nor 2

I.A.S. (Pre) 2008

Ans. (b)

Justice V. R. Krishna Iyer (15 November 1915 – 4 December 2014) was elevated as the Judge of the Supreme Court, but he was not the Chief Justice of India. Justice P.N. Bhagwati and Justice Iyer are known for initiating Public Interest Litigation.

113. PIL is:

- (a) Public Interest Litigation
- (b) Public Inquiry Litigation

- (c) Public Investment Litigation
- (d) Private Investment Litigation

M.P.P.C.S. (Pre) 2013

Ans. (a)

See the explanation of the above question.

114. Where can the Public Interest Litigation (PIL) be filed?

- (a) Only in Supreme Court of India
- (b) Only in High Courts of States
- (c) In Central Administrative Tribunals
- (d) Both in High Courts & Supreme Court

Uttarakhand P.C.S. (Pre) 2012

Ans. (d)

See the explanation of the above question.

115. Consider the following statements and choose the correct answer from the code given below :

Assertion (A) : The public interest litigation permits public-minded citizens to reach the Court of Law.

Reason (R) : The public-minded people may seek Justice for the person who is unable to reach the Court of Law for any reasons.

Select the correct answer using the code given below:

Code :

- (a) Both (A) and (R) are true, and (R) is the correct explanation of (A).
- (b) Both (A) and (R) are true, but (R) is not a correct explanation of (A).
- (c) (A) is true, but (R) is false.
- (d) (A) is false, but (R) is true.

U.P.P.C.S. (Spl) (Mains) 2004

Ans. (a)

Both (A) and (R) are correct and (R) explains (A) correctly. Any citizen can go to Court for Justice regarding the welfare of any other person, group or society through the public interest litigation.

116. The concept of Public Interest Litigation originated in:

- (a) Australia
- (b) India
- (c) The United States
- (d) The United Kingdom

I.A.S. (Pre) 1997

U.P.P.C.S. (Mains) 2011

Ans. (c)

The term "PIL" originated in the United States. Since the nineteenth century, various Movements in that country have contributed to Public Interest Law, which was part of the legal aid movement. The first legal aid office was established in New York in 1876.

117. In which country the concept of Public Interest Litigation was originated?

- (a) Canada
- (b) United States of America
- (c) United Kingdom
- (d) Australia

R.A.S./R.T.S. (Pre.) 2018

Ans. (b)

See the explanation of the above question.

118. 'Judicial Activism' in India is related to –

- (a) Committed Judiciary
- (b) Public Interest Litigation
- (c) Judicial Review
- (d) Judicial Independence

U.P.R.O. /A.R.O. (Pre) 2014

Ans. (b)

Judicial Activism in India is related to Public Interest Litigation. Judicial Activism in India started in the mid 1970s, on the initiative of the Supreme Court.

119. Who said 'judicial activism' should not become 'judicial adventurism'?

- (a) Justice P.N. Bhagavati
- (b) Justice A.S. Anand
- (c) Justice Ranjan Gogoi
- (d) Justice Deepak Mishra

Jharkhand P.C.S. (Pre) 2021

Ans. (b)

Justice A.S. Anand said that Judicial activism should not become Judicial adventurism. Judicial activism has primarily arisen due to the failure of the executive and legislature to act while Judicial adventurism is an extreme form of Judicial activism.

120. The status of women in Indian Society was glorified by a Judgement of a Court in September, 2003. The Court is—

- (a) Supreme Court of India
- (b) Local Courts
- (c) Special Courts
- (d) High Court, U.P.

U.P.P.C.S. (Mains) 2009

Ans. (a)

On 23 September, 2003, Justice M.B. Shah of the Supreme Court of India glorified the status of women in Indian Society by an important Judgement. The Court held that the preference given to women for being appointed as a Principal of the Government College for Girls is not violative of Articles 14, 15 and 16 of the Constitution.

121. The case of Vishakha and others Vs. State of Rajasthan and others is related to -

- (a) Maternity leave in respect of working women
- (b) Transfer policy for women
- (c) Prevention of the practice of dowry prevalent in the society.
- (d) Prevention of sexual harassment of women at work place

R.A.S./R.T.S. (Pre) 2021

Ans. (d)

The Vishakha guidelines were set of procedural guidelines for use in India in case of sexual harassment. Promulgated by Supreme Court in 1997. In 2013 these were superseded by the sexual harassment of Women at the Workplace (Prevention, Prohibition and Redressal) Act, 2013.

122. By passing, 'Triple Talaq Law' recently, the Parliament of India endorsed which year's ruling of the Supreme Court of India that had made Triple Talaq (Talaq-e-Biddat) as unconstitutional?

- (a) 2011
- (b) 2013
- (c) 2015
- (d) 2017
- (e) None of the above/More than one of the above

65th B.P.S.C. (Pre) 2019

Ans. (d)

The Supreme Court in the Shayara Bano case (2017) had declared the Practice of Triple Talaq (Talaq-e-biddat) as unconstitutional. The Triple Talaq is considered to be a violation of Article 14 (the right to equality).

123. In which of the following cases the Supreme Court observed that Central Bureau of Investigation is a 'Caged Parrot'?

- (a) Rail Board Bribery Case
- (b) Vineet Narain Vs. Union of India
- (c) 2G Spectrum Scam Case
- (d) Coal Gate Scam Case

U.P.P.C.S. (Pre) 2015

Ans. (d)

The Supreme Court has denounced the CBI as a "Caged Parrot" in the Coal Gate allocation scam.

124. Supreme Court judgement regarding homosexuality is related to which of the following?

- (a) Section 377 of IPC
- (b) Article 377 of the Indian Constitution
- (c) Article 277 of the Indian Constitution
- (d) None of the Above

U.P.P.C.S. (Pre) 2018

Ans. (a)

Supreme Court judgement regarding homosexuality is related to section 377 of IPC.

125. Under which law is it prescribed that all proceedings in the Supreme Court of India shall be in English language?

- (a) The Supreme Court rules, 1966
- (b) Article 145 of the Constitution of India.
- (c) A Legislation made by Parliament.
- (d) Article 348 of the Constitution of India.

U.P.P.C.S. (Mains) 2013

Ans. (d)

Article 348(1)(a) is related to the language to be used in Supreme Court and High Courts for Acts, Bills, etc. It says "All proceedings in the Supreme Court and every High Court shall be in English language."